

		should be released so that Paul can use them to pay for his defense of this action. (Motion to Release Funds at 8:3-9:27.) Paul argued the funds should be released so that he could use them to pay for his defense. He raised the issue. The opposition responded to this argument and requested that the settlement proceeds either be distributed to the beneficiaries or placed into a blocked account. (ROA 176 at 5:15-9:13.) Paul's reply dedicates more than two of its seven total pages to the issue of Paul's use of the funds for his defense. (ROA 178 at 4:16-6:27.) The issue of Paul's ability to utilize the funds for his defense was raised by the motion and was, therefore, before the court. Further, even if the issue had not been raised by Paul, "the probate court has the <i>'inherent power'</i> to decide all incidental issues necessary to carry out its express powers to supervise the administration of the trust." [Citation.] This inherent equitable power of the probate court has long been recognized to encompass the authority to take remedial action. 'Under California trust law, a court can intervene to prevent or rectify abuses of a trustee's powers. [Citations.]' [Citation.] And, where a probate court has the express authority to remove a trustee sua sponte, it necessarily has the inherent equitable power to employ the less extreme remedy of suspending most of the trustee's powers and appointing an interim trustee pending a hearing. [Citation.] (<i>Schwartz v. Labow</i> (2008) 164 Cal.App.4th 417, 427-428.) The motion is DENIED. Petitioner is directed to give notice.
4	Anderson/Callahan – Trust; 30-2024-01389721	
5	Bent – Trust; 30-2024-01418521	Motion for Judgment on the Pleadings Petitioner Bernadette Bell's Motion for Judgment on the Pleadings as to Respondent James Charles Bent's Opposition to Petitioner Bernadette Bell's Petition to Confirm Beneficiary Status and for Distribution Pursuant to Code of Civil Procedure section 438 (ROA 129) is DENIED. This proceeding was initiated on August 13, 2024, when Charles Lamar Bent filed a petition (ROA 2) seeking removal of James Charles Bent (James) and James T. Sullivan as trustees of The Bent Trust (Trust). The initiating petition is

	directed to an alleged June 11, 2020 restatement and amendment to the Trust. On May 7, 2025, Bernadette Bell (Bell) filed a petition (ROA 60) seeking to confirm her beneficiary status under the Trust. Her petition is based on an alleged January 5, 2023 amendment to the Trust. James filed an opposition (ROA 111) to Bell’s petition on February 25, 2026. Bell then filed the instant motion, seeking judgment in her favor on James’ opposition on the ground James’ opposition is time-barred. For purposes of this motion, the court presumes, without deciding, that a motion for judgment on the pleadings can be brought against an opposition on the grounds asserted by Bell. Motions for judgment on the pleadings are “the functional equivalent of a general demurrer.” (<i>Spencer v. City of Palos Verdes Estates</i> (2023) 88 Cal.App.5th 849, 861.) Accordingly, the “grounds for the motion must appear on the face of the [pleading], and in any matter subject to judicial notice.” (<i>Id.</i> at p. 862.) Because Bell did not ask the court to take judicial notice of anything, the only thing the court may consider in determining this motion are the allegations, denials, and assertions set forth in James’ opposition. Bell argues the opposition was filed more than 120 days after James was timely served with statutory notice of the relevant trust amendment and, accordingly, is time-barred under Probate Code sections 16061.7 and 16061.8. This argument is outside the parameters of James’ opposition, which makes no reference to the alleged service of the notice. Because the motion is directed to assertions beyond outside of the opposition, it must be denied. Further, even if the alleged notice were referenced in James’ opposition, the reference would have to unequivocally demonstrate the opposition is time-barred. “[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution.” (<i>Bezirdijian v. O’Reilly</i> (2010) 183 Cal.App.4th 316, 322.) Accordingly, a motion for judgment on the pleadings based on a statute of limitations “will not lie where the action may be, but is not necessarily barred. [Citation.] In order for the bar of the statute of limitations to be raised . . . the defect must clearly and affirmatively appear on the face of the [pleading]; it is not enough that the [pleading] shows that the action may be barred.” (<i>Geneva Towers Ltd. Partnership v. City of San Francisco</i> (2003) 29 Cal.4th 769, 781.) The motion is DENIED.
--	--

		The court will give notice.
6	Burciaga – Limited Conservatorship; 30-2020-01174580	Motion to Be Relieved Law Office of Michael R. Weinstein’s motion to be relieved as counsel for Maria Ramirez (ROA 136) is GRANTED. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court’s order as entered. Withdrawal will be effective upon filing of proof of service of the order.
7	Jones – Trust; 30-2026-01559861	
8	Boudakian – Conservatorship; 30-2024-01385950	
9	Ueberroth – Trust; 30-2025-01472222	Stipulation and Order signed 06/09/2026. Motion moot.
10	Baker – Trust; 30-2025-01487809	Demurrer and Motion to Strike The Demurrer by Cynthia K. Baker-Fox to Jennifer Lynn Baker’s Amended Petition (ROA 27) is OVERRULED. Cynthia K. Baker-Fox’s Motion to Strike Portions of the Amended Petition of Jennifer Lynn Baker (ROA 26) is DENIED. I. DEMURRER (ROA 26) Cynthia K. Baker-Fox (Cynthia) demurs to Jennifer Lynn Baker’s Amended (1) Petition for Trust Accountings [PCs 16060-s[sic]16062]; (2) Petition for Invalidation & Reversal of Trust Amendments an & Return of Assets [PCs 1600.5, PCs 6112 & PCs 850]; (3) Petition for Breach of Fiduciary Duty [PCs 16002-s 16015]; (4) Petition for Compensatory & Double Damages [PCs 859]; (5) Petition for Surcharge & Other Relief [PCs 17000 et seq.]; (6) Petition for Punitive Damages [Civil Code 3294] on the ground that each cause of action fails to state sufficient facts and is uncertain. Cynthia also demurs to each cause of action on the ground that the court lacks jurisdiction over any of the claims